

Costs are \$583.61.

Disposition

Plaintiff's Motion is granted. Judgment will be entered in the amount of \$17,057.21.

Plaintiff to file order on Motion, as well as submit Judgment.

6. 9:00 AM CASE NUMBER: L25-01059
CASE NAME: CAPITAL ONE, N.A. VS. ANDREW LAWRENCE
*HEARING ON MOTION IN RE:
FILED BY: CAPITAL ONE, N.A.
TENTATIVE RULING:

Background

Plaintiff filed a motion to vacate dismissal and enter judgment pursuant to stipulation. The Motion and its supporting documents are timely.

This Motion is unopposed.

Analysis

Mail service was completed at an address for the Defendant's counsel of record.

The parties entered into a CCP 664.6 agreement where the Defendant was to follow a particular fee payment schedule. If Defendant failed to abide by the payment schedule, then the agreement called for the dismissal to be vacated and judgment to be entered in the amount of \$28,993.45, plus costs, and less any credits for payments received.

The agreement was filed with the court.

The case was then dismissed.

The Defendant made payments of \$3,384.

Costs are \$523.61.

Disposition

Plaintiff's Motion is granted. Judgment will be entered in the amount of \$26,133.06.

Plaintiff to file order on Motion, as well as submit Judgment.

7. 9:00 AM CASE NUMBER: L25-01668

CASE NAME: FARIBORZ GHORBAN VS. VICTOR OSORIA

*HEARING ON MOTION IN RE: TO CORRECT CASE CLASSIFICATION FROM LIMITED TO UNLIMITED
(CONTINUED FROM 1/27/26)

FILED BY: GHORBAN , FARIBORZ

TENTATIVE RULING:

Background

Plaintiff filed this Motion on 11/4/25, and it was originally scheduled for 1/27/26. However, the court continued the Motion to 3/17/26, because Plaintiff had not served Defendant with notice of the Motion.

As of this writing, Plaintiff still has not served Defendant with notice of the Motion.

This will not be continued again. Plaintiff can refile if they choose.

Disposition

Motion will be dropped from the calendar.

8. 9:00 AM CASE NUMBER: L25-03569

CASE NAME: WELLS FARGO BANK, NA VS. EHSANUDDIN NAEBKHIL

*HEARING ON MOTION IN RE: JUDGMENT ON THE PLEADINGS

FILED BY: WELLS FARGO BANK, NA

TENTATIVE RULING:

Background

Plaintiff filed a Motion for Judgment on the Pleadings. The motion was timely served on counsel for Defendant. The Motion is unopposed.

On 12/4/25, the court granted Plaintiff's Motion to deem matters true those requested in Plaintiff's Request for Admissions. All but the final request for admission were deemed to be true by the court.

Analysis

A motion for judgment on the pleadings may be brought by a plaintiff where the complaint states facts sufficient to constitute a cause or causes of action against the defendant and the answer does not state facts sufficient to constitute a defense to the complaint. Code Civ. Proc. § 438(c); see Weil & Brown, *et al.*, *Cal. Prac. Guide: Civ. Pro. Before Trial* (The Rutter Group 2024) ("Rutter Civ. Pro.") § 7:290. The grounds for a motion for judgment on the pleadings must appear on the face of the pleadings or be based on facts that a court may judicially notice. Civ. Proc. § 438(d); Rutter Civ. Pro., §